

Court No. - 46

Case :- WRIT - C No. - 22553 of 2023

Petitioner :- Syed Fazal Fakhri

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Irfan Alim Siddiqui

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Ashwani Kumar Mishra,J.

Hon'ble Syed Aftab Husain Rizvi,J.

Heard learned counsel for the parties.

It transpires that the electricity ombudsman has passed an order on 31.01.2023 accepting the petitioner's claim in part and issued certain directions for a fresh order to be passed by the Executive Engineer in light of his directions. It is asserted that appropriate determination of dues is not made and the objection of the petitioner has not been dealt with, as per law.

On behalf of the respondents, it is pointed out that a demand of Rs.1,20,826/- has now been determined in terms of the order passed by the ombudsman.

According to petitioner, this demand is not in accordance with the directions of the ombudsman.

Admittedly any person aggrieved by the determination of liability to pay the bill has the remedy of filing objection in terms of clause 6.5B of U.P. Electricity Supply Code. Such an objection is alleged to have been made by the petitioner before the competent forum.

The question as to whether the determination of authority is in accordance with the directions issued by the ombudsman is an

issue which can be examined while considering the petitioner's objection in terms of clause 6.5B of U.P. Electricity Supply Code.

This writ petition therefore, is disposed of with a direction upon the second respondent to accord consideration to petitioner's objection preferred under clause 6.5B of U.P. Electricity Supply Code, keeping in view, the direction issued by the ombudsman. Such consideration shall be made within a period of six weeks from the date of production of a certified copy of this order.

Order Date :- 17.7.2023

C. MANI